

Dhiresb Dakuu vs Subhasmita Dakuu Opposite Party on 23 April, 2026

Author: Mruganka Sekhar Sahoo

Bench: Mruganka Sekhar Sahoo

IN THE HIGH COURT OF ORISSA AT CUTTACK

RPFAM No.311 of 2025

Dhiresb Dakuu Petitioner

Ms. S. Pattanaik on behalf of
Mr. Amitav Tripathy, Advocate

-versus-

Subhasmita Dakuu Opposite party

CORAM:
JUSTICE MRUGANKA SEKHAR SAHOO

ORDER

23.04.2026 Hybrid Mode Order No.

01. 1. The learned counsel for the petitioner is heard at some length.

2. The petitioner-husband in the marriage is before this Court challenging the judgment dated 03.09.2025 passed by the learned Judge, Family Court, Nayagarh in Crl.M.P. No.144 of 2021. The Crl.M.P. was filed by the wife in the marriage under Section 125, Cr.P.C. (since repealed and substituted pari metria provision under Section 144 of Bharatiya Nagarik Suraksha Sanhita (BNSS) 2023).

3. By filing the Crl.M.P., the wife in the marriage had sought for monthly maintenance @ 40,000/- per month. The present petitioner-husband in the marriage did appear before the learned trial court, contested the application filed by the wife, filed his objection/written statement.

4. It is submitted by the learned counsel for the petitioner herein that the learned court has not taken note of the fact that the husband is paying Rs.12,000/- per month pursuant to the direction in C.P.No.40 of 2023, arising out of which I.A. No.21 of 2023 was filed by the wife under Section 24 of the Hindu Marriage Act. It is further submitted that said C.P. No.40 of 2023 has been filed by the husband under Section 13 of the Hindu Marriage Act.

5. Accordingly, the learned counsel was asked whether the petitioner has indicated the fact of payment pursuant to the direction in the C.P. in the written statement and had produced the evidence before the learned trial court regarding payment of the amount every month as submitted and if so, what is the finding of the learned Judge, Family Court on that; learned counsel seeks and has adjournment.

6. List in the week commencing 18.05.2026 under the heading 'Fresh Admission'.

(Mruganka Sekhar Sahoo) Judge Signature Gs Not Verified Digitally Signed Signed by: GAGAN BIHARI SAMAL Reason: Authentication Location: ohc Date: 30-Apr-2026 16:21:37